

Narain Singh v. State of U.P. and others

Allahabad High Court · Division Bench · 4 February 2016 · Writ-C No. 39205 of 2012 · **Writ dismissed; bill challenge relegated to clause 6.5.**

HEADNOTE

A writ challenging an electricity bill was dismissed with liberty to pursue the statutory objection under clause 6.5 of the Electricity Supply Code, 2005. Any interim order stood discharged.

FACTUAL SUMMARY

Narain Singh petitioned the Allahabad High Court in 2012 against the State of Uttar Pradesh and the electricity department, aggrieved by a bill. On 17 August 2012 counsel for the department accepted notice; the Court granted two weeks to file a counter affidavit or take instructions, listed the matter for 4 September 2012, and directed the respondents to clarify whether any theft case had been registered against him. On that date the petitioner's counsel was absent and the case was re-listed. It came up again on 4 February 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-challenge-relegated-to-clause-6.5

HOLDING

If the consumer is not satisfied with a bill issued by the electricity department, the remedy is under clause 6.5 of the Electricity Supply Code, 2005; a writ petition is dismissed with liberty to pursue that remedy and any interim order stands discharged. ¶ 3